

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MANUEL ISACC SUAREZ,

Petitioner

VS.

MARIA RADWICK,

Respondent

) Case Number: FPT-24-378517

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME); MODIFICATION OF EXISTING ORDER DATED: JUNE 2, 2025

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 7/9/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

1) Petitioner Manuel Isacc Suarez (Father) and Respondent Maria Radwick (Mother) have one minor child together, Oshan (DOB: 8/28/2017, age 8). Pursuant to a Findings and Order After Hearing (FOAH) filed 6/2/2025, the parties share joint legal and physical custody of Oshan, with Father having parenting time as follows: (a) Sunday at 6:30PM to Wednesday school drop-off (or 4PM if school if not in session) during the school year; and (b) week-on, week-off schedule during summer break and travel time for both parties. The 6/2/2025 FOAH also contains orders relating to parenting time during other holidays and school breaks.

2) On for hearing is Mother's request filed 4/3/2026 in which she seeks a change in custody and parenting time on several grounds, including Father's concealment of his inappropriate housing situation, his ongoing instability, his failure to provide Oshan with adequate care, emotional

support, basic necessities, and timely and regular attendance at school and extracurricular activities, the fact that Mother has had de facto 80% custody of Oshan since the 6/2/2025 order and 100% custody of him since December 2025, and Oshan's wishes to have less time with Father. Mother seeks an order for sole legal and physical custody of Oshan, with parenting time for Father on Saturday or Sunday, from 1PM to 6PM during school weeks and during school breaks when Mother is not traveling with Oshan. She also seeks an order allowing her to travel with Oshan to Bulgaria for up to one month during summer break (instead of the current order permitting her to travel with him to Bulgaria for 2 weeks).

3) On 6/24/2026, Father filed a response in which he seeks to maintain joint legal and physical custody, with a temporary change to his parenting time. He states that Mother stopped his visits and that he has not been able to see Oshan since December 2025. He states he is intimidated by Mother because she is a lawyer. He states that her request contains inaccurate and misleading statements and presents incomplete facts. He states he would like the custody exchanges to occur in a public area such as the local park.

4) On 7/1/2026, Mother filed a reply in which she states (and provides exhibits to show) that she told Father on several occasions that he can let her know in writing if he wishes to resume his parenting time, and that he never did so. She sets forth additional information regarding Father's living situation.

5) On 7/7/2026, Father filed a declaration in which he states the parties had an agreement to temporarily change the parenting time order to allow Oshan live with Mother while Father searched for a new home. He states he understood this arrangement to be temporary, but that when he told Mother that he wanted to resume visits, Mother told him he had to wait 30 days. He disputes many of the other statements Mother has made.

B. Findings and Orders

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.

1 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/9/2026 in**
2 **Department 404.**
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